

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

EARLEAN EDWARDS DUKART, *Complainant*

v.

OCEAN STAR INTERNATIONAL INC., D/B/A INTERNATIONAL
VAN LINES, *Respondent*.

DOCKET NO. 20-03

Served: April 16, 2020

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER GRANTING EXTENSION TO RESPOND TO MOTION TO DISMISS

On March 30, 2020, the parties were given a deadline of April 14, 2020, to file any additional arguments or documents regarding Respondent's request to dismiss this proceeding. On April 14, 2020, Respondent filed a supplemental memorandum in support of the motion to dismiss.

On April 14, 2020, Complainant, who is *pro se* (not represented by legal counsel) filed a document labeled as a "Status Report" which indicated that it was in response to the initial order. The status report indicated Complainant's willingness to mediate the dispute and confusion regarding the process. Complainant addressed arguments made in the request to dismiss and attached an email in support of her arguments. Complainant also stated that she "again requests a continuation of these proceedings." In addition, she states that due to the pandemic, borders are closed and that this should be taken into account with request to deadlines that require Complainant to be physically present.

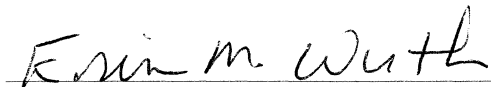
It appears that Complainant's request to continue the proceedings means that she wants the proceeding to continue (not be dismissed) although it could also be read as a request for an extension of time to respond to the motion. In an abundance of caution, Complainant will be granted a short extension of time to file any additional response to the motion to dismiss and supplemental memorandum in support of the motion to dismiss. After this motion is resolved, if the proceeding is not dismissed, a schedule will be issued with time for discovery and briefing of the proceeding. Complainant must file a supplemental response, if any, to the motion to dismiss by April 27, 2020.

Physical presence is usually not required in these proceedings. Typically, the parties file motions, such as the motion to dismiss with legal arguments along with supporting documents as evidence. Parties may also include sworn statements of witnesses. Discovery may be conducted to obtain relevant evidence. 46 C.F.R. §§ 502.141-502.150. Then, the parties file briefs with

legal arguments, proposed findings of fact, and an appendix with relevant evidence. 46 C.F.R. § 502.214. Because of the pandemic, documents should be filed by email. See www.fmc.gov/temporary-adjustments-in-fmc-operations. Dockets in this and other proceedings are available at www2.fmc.gov/readingroom/ProceedingSearch.

The parties are expected to meet all deadlines whether or not they decide to work with the Office of Consumer Affairs and Dispute Resolution Services or to exchange offers between themselves to resolve the proceeding. If a mutually agreeable settlement is reached, it should be filed with a motion requesting that it be approved.

For the reasons stated above, it is hereby **ORDERED** that Complainant may file a response to the motion to dismiss and supplemental memorandum in support of the motion to dismiss by email to secretary@fmc.gov with a copy to judges@fmc.gov and the opposing party by April 27, 2020.

A handwritten signature in black ink, reading "Erin M. Wirth", is written over a horizontal line.

Erin M. Wirth
Chief Administrative Law Judge